

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

Case No.: 2018-CC-_____

vs.

CRECELDA GARCIA and ANY UNKNOWN
TENANT(s),
Defendants.

COMPLAINT SEEKING EVICTION, DAMAGES AND OTHER RELIEF

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE
MANOR, sues the Defendant(s), CRECELDA GARCIA and any UNKNOWN TENANT(s), in
possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida, and doing business under the name Colonial Mobile Manor at all times relevant.
3. Defendant, CRECELDA GARCIA, last known registered owner of the mobile home located at 900 9th Avenue East, Lot #138, Palmetto, Manatee County, Florida 34221.
4. Defendant, CRECELDA GARCIA, is a natural person at all times relevant believed to reside in a mobile home located at 900 9th Avenue East, Lot #48, Palmetto, Manatee County,

Florida 34221.

5. Defendant(s), ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot #138, Palmetto, Manatee County, Florida 34221, but if so, does without the consent of the Plaintiff.

6. Plaintiff owns, in fee simple, the real property located at 900 9th Avenue East, Lot #48, Palmetto, Manatee County, Florida 34221, known as COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR.

7. Plaintiff, as landlord, leased to Defendant, CRECELDA GARCIA, Lot #48, of the above-stated mobile home park at a monthly rental fee of \$567.00 for an ongoing period of one (1) year. The Defendant owes lot rent for the month of January 2019 in the sum of \$567.00, plus late rent fees in the amount of \$45.00, pursuant to the Rental Agreement.

8. Defendant, CRECELDA GARCIA, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$612.00 as of January 1, 2019.

9. On January 8, 2019, Plaintiff served by posting on Defendant(s), CRECELDA GARCIA and ANY UNKNOWN TENANT(s), a Five-Day Notice of Termination of Tenancy for Non-payment of Rent. A copy of this Notice is attached and marked as Plaintiff's Exhibit A accompanied by a copy of the certified mail receipt for the same.

10. On January 8, 2019, Plaintiff mailed a Five-Day Notice of Termination of Tenancy for Non-payment of Rent to CRECELDA GARCIA to 900 9th Avenue East, Lot #48, Palmetto, Manatee County, Florida 34221. A copy of the certified receipt is attached and marked as Plaintiff's Exhibit B.

11. Defendant(s), CRECELDA GARCIA and ANY UNKNOWN TENANT(s), have failed to make the payment of past due rent, and late fees within five (5) days of delivery of the

Notice and continue to refuse to pay the amounts due and owing to Plaintiff.

12. ANY UNKNOWN TENANT(S), may reside or have an interest in Lot #48 of COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

13. Pursuant to the Rental Agreement and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

14. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney fees against Defendant(s), CRECELDA GARCIA and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

15. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

16. Plaintiff re-alleges the facts contained within paragraphs 1 through 14 as though fully set forth herein.

17. Defendant, CRECELDA GARCIA, owes the Plaintiff a sum less than \$15,000.00 plus interest, costs and reasonable attorney fees.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, JEREMY HOENE, for damages, costs and a reasonable attorney's fee.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

18. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

19. The Plaintiff re-alleges the facts contained within paragraphs 1 through 17 and paragraphs 18 through 23 as though fully set forth herein.

20. Defendant, CRECELDA GARCIA , is the registered owner of a *1970 Unknown Mobile Home, VIN No. 4JBB5512C2N14465, Title No. 0003908702*, located on Lot #48 of the property leased by the Plaintiff to the Defendant.

21. Upon the Plaintiff being determined to be entitled to judgment in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, maintenance fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

22. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

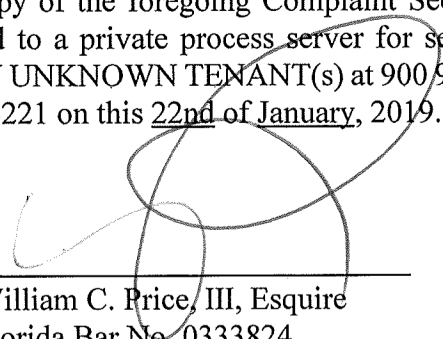
23. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, CRECELDA GARCIA , all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendant(s), plus any costs expended by it for

obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendant(s), CRECELDA GARCIA and ANY UNKNOWN TENANT(s) at 900 9th Avenue East, Lot #48, Palmetto, Manatee County, Florida 34221 on this 22nd of January, 2019.



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